

HOUSE BILL No. 1065

DIGEST OF INTRODUCED BILL

Citations Affected: IC 35-31.5-2-146.5; IC 35-44.1-1-2.5.

Synopsis: Ban on gratuities for public officials. Makes it a Class A misdemeanor for: (1) a person to offer a payment to a public servant as a reward for an official act taken by the public servant; or (2) a public servant to solicit or accept a payment as a reward for an official act performed by the public servant. Increases the penalty to a Level 6 felony if the fair market value of the reward is at least \$750. Exempts: (1) a good or service that is subject to a reporting requirement or otherwise authorized by an applicable rule or code of ethics; (2) a good or service with a value of less than \$100; (3) commemorative or ceremonial items, such as plaques, trophies, or framed photos; (4) lawful political contributions; or (5) wages and other forms of work related compensation from the governmental entity employing the public servant that the public servant is legally permitted to receive.

Effective: July 1, 2026.

Slager

December 5, 2025, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1065

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 35-31.5-2-146.5 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 146.5. "Gratuity", for purposes**
4 **of IC 35-44.1-1-2.5, has the meaning set forth in IC 35-44.1-1-2.5.**

5 SECTION 2. IC 35-44.1-1-2.5 IS ADDED TO THE INDIANA
6 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
7 [EFFECTIVE JULY 1, 2026]: **Sec. 2.5. (a) As used in this section,**
8 **"gratuity" means a payment made to a public servant after an**
9 **official act as a reward or token of appreciation. However, the**
10 **term does not include:**

11 **(1) a good or service that is:**

12 **(A) subject to a reporting requirement; or**

13 **(B) otherwise authorized;**

14 **under a rule or code of ethics that applies to the donor or**
15 **public servant;**

16 **(2) a good or service having a de minimis value of less than**
17 **one hundred dollars (\$100);**



1 (3) an item that is primarily ceremonial or commemorative,
 2 such as a plaque, trophy, certificate, framed photo, or similar
 3 item;

4 (4) a political contribution subject to IC 3-9-2 that is reported
 5 in accordance with applicable law; or

6 (5) salary, wages, a bonus, or any other form of work related
 7 compensation:

8 (A) from the governmental entity that employs the public
 9 servant; and

10 (B) that the public servant is legally authorized to receive.

11 (b) As used in this section, "public servant" includes a former
 12 public servant.

13 (c) A person who provides a gratuity to a public servant, with
 14 the intent to reward the public servant for an official act
 15 performed by the public servant in the public servant's official
 16 capacity, commits providing an unlawful gratuity to a public
 17 servant, a Class A misdemeanor. However, the offense is a Level 6
 18 felony if the fair market value of the gratuity is at least seven
 19 hundred fifty dollars (\$750).

20 (d) A public servant who:

21 (1) solicits or accepts a gratuity from another person; and

22 (2) either:

23 (A) solicits the gratuity as a reward for; or

24 (B) knows or reasonably should know that the gratuity is
 25 offered as a reward for;

26 an official act performed by the public servant in the public
 27 servant's official capacity;

28 commits soliciting or accepting an unlawful gratuity, a Class A
 29 misdemeanor. However, the offense is a Level 6 felony if the fair
 30 market value of the gratuity is at least seven hundred fifty dollars
 31 (\$750).

